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File No.: EXP202210132

RESOLUTION OF ARCHIVE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On August 24, 2022, a complaint was filed with registration number REGAGE22e00036530058 with the Spanish Agency for Data Protection against ECOIMPERIA, S.L., with NIF B01902576 (hereinafter, the complained party). The reasons for the complaint are as follows: The complainant submits a complaint regarding the receipt of a commercial call from the calling line ***TELEFONO.1 on August 19, 2022, at 16:35 hours on their fixed line ***TELEFONO.2, which has been registered in the Robinson List since August 25, 2017.

Along with the notification, the following is provided:

- Image of the device where the call was received, showing the date and time of receipt.
- Certificate of registration in the Robinson List.
- Invoice for the telephone line receiving the call, to prove ownership.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was not collected by the responsible party; the forwarding was reiterated on October 10, 2022, by certified postal mail, and was again returned as unclaimed by the postal service on November 10, 2022, as it had not been picked up at the office after two delivery attempts resulting in "absent delivery" on November 9 and 10, 2022.

THIRD: On November 24, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

RESULT OF THE INVESTIGATIVE ACTIONS

On December 27, 2022, a request for information was sent to the operator of the receiving line of the call to confirm the receipt of said call, which was confirmed in their written allegations registered on January 5, 2023, in which they added that the duration of the call was 272 seconds.

On the same date, December 27, 2022, a consultation was made on the website of the Telecommunications Numbering and Operators Registry of CNMC to gather information on the operator to which the calling telephone number provided in the complaint belongs, resulting in VOXBONE, S.A. (hereinafter VOXBONE).

This operator was requested to confirm the existence of a call made to the complainant's phone and the ownership of the subscriber line on that date. Made available in the Electronic Notification Service and Authorized Electronic Address on December 27, 2022, the electronic notification shows an automatic rejection date of January 7, 2023.

On March 6, 2023, the same request for information was sent to the company MLAB ABOGADOS S.L.P. as the representative of VOXBONE, which responded on March 9, providing the following information and statements:

- That VOXBONE is the operator to which the CNMC assigned the number ***TELEFONO.1.
- That on the referred dates, the numbers were assigned to the company STG COMPANY, located at

Calle Alejandro Dumas L7, 29004 Málaga, contact phone 5117059777, Email: info@stg-company.com, IP Address: 72.52.158.33, tax identification number RUC 20563394936.

- That their systems do not identify any call originating from the referred number to the number ***TELEFONO.2. If it had occurred, it was managed by another operator making improper use of their number (spoofing).

On April 19, 2023, information about this company was sought both on Google and on its own website <https://stg-company.com/landing>, obtaining different postal contact addresses in Peru:

- JR. LOS ROSALES NRO. 151 URB. VALDIVIEZO (SECOND FLOOR) LIMA - LIMA - SAN MARTIN DE PORRES.

- CAL. JOSE PEREYRA NRO. 586 URB. PANAMERICANA NORTE LIMA - LIMA - LOS OLIVOS

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Both STG COMPANY and STG GROUP are consulted on the website

<https://e-consultaruc.sunat.gob.pe/cl-ti-itmrconsruc/FrameCriterioBusquedaWeb.jsp> belonging to the National Superintendency of Customs and Tax Administration of Peru.

A Resolution adopted by the Secretary of the National Commission of Markets and Competition (hereinafter, CNMC) is obtained, “by which the entity STG GROUP, S.A.C. is registered in the Operator Registry as an authorized person to provide electronic communications services,” with TECH TELECOM LEGAL SERVICES, S.L. being the company responsible for notifications (hereinafter, TECH TELECOM).

With this contact, a request for information is sent to STG GROUP through TECH TELECOM dated April 19, 2023, being notified on April 21, 2023, and reiterated on May 9, 2023, due to the absence of a response.

TECH TELECOM responds on May 25, 2023, providing the following information and statements:

- Regarding the ownership of the subscriber line with number ***TELEFONO.1, it indicates that the line has been used by the Subscriber CENTURY CORP E.I.R.L since August 1, 2022, to the present:

CENTURY CORP E.I.R.L

RUC: 20609365715

Address: AV. PROCERES DE LA INDEPENDENCIA NRO. 3408 INT. 3

City: PERÚ / LIMA / SAN JUAN DE LURIGANCHO

Legal representative: A.A.A.

DNI: ***NIF.1

“It is a Subscriber, not a Reseller. The Reseller that resells the line for use to CENTURY CORP E.I.R.L is STG GROUP S.A.C. The Subscriber is the one who uses the line, not the Reseller (STG GROUP, S.A.C) which is prohibited from use in the contract with the Operator to whom it resells the line to the Subscriber.”

LEGAL GROUNDS

I

Competence

According to the provisions established in Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

Finally, the Fourth Additional Provision “Procedure in relation to the competences attributed to the Spanish Agency for Data Protection by other laws” establishes that: “The provisions in Title VIII and its

development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competences attributed to it by other laws.”

II

Final Provision Sixth, Section 2 of LGTel 11/2022

“The right of end users not to receive unwanted calls for commercial communication purposes as provided in Article 66.1.b) shall come into force within one year from the publication of this law in the 'Official State Gazette'. Until that time, end users of publicly available interpersonal communication services based on numbering may continue to exercise the right to oppose receiving unwanted calls for commercial communication purposes made through systems other than those established in Article 66.1.a) and to be informed of this right.”

III

Conclusion

Through the investigations carried out by this Agency, it has been confirmed that the call was received by the operator of the receiving line and determined that the holder of the calling line corresponds to a company located in Peru (CENTURY CORP E.I.R.L), for which no representatives of the company have been located in the European Union; therefore, it must be noted that the LGT does not confer the Spanish Agency for Data Protection with competences over a company located in Peru.

Thus, in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE these proceedings.

SECOND: TO NOTIFY this resolution to ECOIMPERIA, S.L., and to the complainant.

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In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions established in Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-020323

Mar España Martí

Director of the Spanish Agency for Data Protection

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